

HOUSE No. 3844

The Commonwealth of Massachusetts

PRESENTED BY:

Carmine Lawrence Gentile

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying resolution:

Resolutions proclaiming that the Commonwealth of Massachusetts supports admitting Washington, D.C. into the Union as a state of the United States of America.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Carmine Lawrence Gentile</i>	<i>13th Middlesex</i>	<i>1/10/2025</i>
<i>James C. Arena-DeRosa</i>	<i>8th Middlesex</i>	<i>2/12/2025</i>
<i>Shirley B. Arriaga</i>	<i>8th Hampden</i>	<i>11/13/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>1/27/2025</i>
<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>1/26/2025</i>
<i>Patricia D. Jehlen</i>	<i>Second Middlesex</i>	<i>2/13/2025</i>
<i>Mary S. Keefe</i>	<i>15th Worcester</i>	<i>3/4/2025</i>
<i>David Henry Argosky LeBoeuf</i>	<i>17th Worcester</i>	<i>4/7/2025</i>
<i>Brian W. Murray</i>	<i>10th Worcester</i>	<i>1/19/2025</i>
<i>Danillo A. Sena</i>	<i>37th Middlesex</i>	<i>1/24/2025</i>
<i>Bud L. Williams</i>	<i>11th Hampden</i>	<i>1/13/2025</i>

HOUSE No. 3844

By Representative Gentile of Sudbury, a petition (accompanied by resolutions, House, No. 3844) of Carmine Lawrence Gentile and others for adoption of resolutions memorializing the Congress of the United States to admit Washington, D.C. into the Union as a state of the United States of America. Veterans and Federal Affairs.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

Resolutions proclaiming that the Commonwealth of Massachusetts supports admitting Washington, D.C. into the Union as a state of the United States of America.

1 Whereas, Since the ratification of the Constitution of the United States on June 21, 1788,
2 the Congress of the United States has had the power To exercise exclusive Legislation in all
3 Cases whatsoever, over such District (not exceeding ten Miles square) as may, by Cession of
4 particular States, and the Acceptance of Congress, become the Seat of the Government of the
5 United States; and

6 Whereas, The Seat of the Government of the United States was accepted by the Congress
7 of the United States on July 16, 1790 and transferred from the Commonwealth of Pennsylvania
8 to the District on December 1, 1800 in accordance with the Residence Act of 1790, and was
9 organized into the District of Columbia under the entire control of the Congress of the United
10 States for every purpose of Government on February 27, 1801 in accordance with the District of
11 Columbia Organic Act of 1801, through which the residents ceased to be considered citizens of a
12 state, no longer entitled to all the rights, guaranties, and immunities of the Constitution of the
13 United States including, but not limited to: the right to appoint at least three Electors in the

Electoral College for President and Vice President of the United States, the right to elect two Senators and at least one Representative in the Congress of the United States, and the right to self-govern and ratify proposed amendments to the Constitution of the United States, despite continuing to pay federal taxes, serve in the military, and share all other responsibilities of citizenship of the United States; and

Whereas, A Twenty-Third Amendment to the Constitution of the United States was proposed by the Congress of the United States on June 16, 1960 and ratified by a sufficient number of states on March 29, 1961 granting The District constituting the seat of Government of the United States the right to appoint A number of electors of President and Vice President equal to the whole number of Senators and Representatives in Congress to which the District would be entitled if it were a State, but in no event more than the least populous State; and

Whereas, The Congress of the United States granted a Delegate to the House of Representatives from the District of Columbia, who shall have a seat in the House of Representatives, with the right of debate, but not of voting, on September 22, 1970 in accordance with the District of Columbia Delegate Act, (after previously establishing the position on February 21, 1871 and repealing the position on June 20, 1874); and

Whereas, Enactment of the District of Columbia Home Rule Act by the Congress of the United States on December 24, 1973 and ratification of the Charter Referendum by a majority of the voters of the District of Columbia on May 7, 1974, re-organized the District of Columbia by granting limited powers of local self-government to an elected thirteen-member Council of the District of Columbia and an elected Mayor of the District of Columbia to relieve Congress of the burden of legislating upon essentially local District matters; however, the Congress of the United

36 States granted no local control over the judiciary and reserved the right, at any time, to exercise
37 its constitutional authority as legislature for the District, by enacting legislation for the District
38 on any subject, whether within or without the scope of legislative power granted to the
39 Council... including legislation to amend or repeal any law in force in the District; and

40 Whereas, Historically, the Congress of the United States and the President of the United
41 States have interfered with the District of Columbia's local self-government and Home Rule by
42 enacting resolutions disapproving, amending, and repealing actions of the Council of the District
43 of Columbia and the Mayor of the District of Columbia – including cases concerning the location
44 of chanceries on December 20, 1979, sexual assault reform on October 1, 1981, schedule of
45 heights on March 12, 1991, and a revised criminal code on March 20, 2023 – and by imposing
46 budget riders that control and limit the use of locally-raised tax revenue – including cases
47 concerning reproductive health services, cannabis use, and statehood advocacy; and

48 Whereas, On multiple occasions, a majority of the voters of the District of Columbia have
49 approved initiatives and referendums expressing their desire for statehood, most recently on
50 November 8, 2016, through which 85.69% of voters 1) agreed that the District should be
51 admitted to the union as the State of Washington, D.C., 2) approved the Constitution of the State
52 of Washington, D.C., 3) approved the proposed boundaries between the State of Washington,
53 D.C. and the federal enclave, and 4) agreed that the State of Washington, D.C. shall guarantee an
54 elected representative form of government; and

55 Whereas, Other state and territorial legislatures in the United States have introduced,
56 debated, and passed resolutions that support admitting Washington, D.C. into the Union as a
57 state of the United States of America; and

Whereas, Despite the Constitution of the United States establishing that New States may be admitted by the Congress into this Union, and despite the United States House of Representatives passing the Washington, D.C. Admission Act on June 26, 2020 and again on April 22, 2021, which would declare Washington, D.C. to be a State of the United States of America, and is declared admitted into the Union on an equal footing with the other States in all respects whatever, the Congress of the United States has yet to grant full statehood to the approximately 700,000 people of Washington, D.C.; be it therefore

Resolved, that the Commonwealth of Massachusetts supports admitting Washington, D.C. into the Union as a state of the United States of America; and be it further

Resolved, that the Commonwealth of Massachusetts opposes efforts by the Congress of the United States and the President of the United States that interfere with local self-government and Home Rule – including federal laws disapproving, amending, and repealing actions of the Council of the District of Columbia and the Mayor of the District of Columbia as well as federal budget riders that control and limit the use of locally-raised tax revenue – and calls on the Congress of the United States and the President of the United States to enact federal legislation granting statehood to the people of Washington, D.C.; and be it further

Resolved, that copies of this resolution be sent to the President of the United States, the Vice President of the United States in their capacity as President of the United States Senate, the Speaker of the United States House of Representatives, and the members of the Massachusetts congressional delegation.